BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,** Defendant.	Case No. 4:26-cv-05953-ASK **NOTICE OF SUPPLEMENTAL AUTHORITY** **[Civil L.R. 7-3]** Date: September 30, 2026 Time: 1:30 p.m. Ctrm: Oakland 4, 3rd Floor Judge: Hon. Ajay S. Krishnan

NOTICE OF SUPPLEMENTAL AUTHORITY

TO THE COURT AND TO DEFENDANT AND HIS ATTORNEY OF RECORD:

Plaintiff Brendan Ngehsi Newanforbi, appearing in propria persona, submits this Notice of Supplemental Authority in connection with Defendant's Motion to Dismiss the First Amended Complaint and/or Motion to Strike (hearing reset by Clerk's Notice, Dkt. 21, to September 30, 2026, 1:30 p.m., Oakland Courtroom 4). Plaintiff's opposition was original-filed August 27, 2026, the day before the state-court hearing described below.

On August 27, 2026, the Honorable Jenna M. Whitman, Department 25 of the Alameda County Superior Court, issued a written tentative ruling on Respondents' demurrer to the Petition for

Writ of Mandate in Newanforbi v. California Highway Patrol et al., No. 26CV191136 — the state-law mandate proceeding on the same April 20, 2026 U-visa certification denial that is the subject of this action. The demurrer was heard August 28, 2026. A copy of the written tentative is attached as Exhibit A.

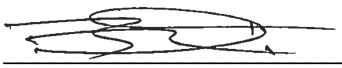
The tentative overrules the demurrer as to the first cause of action (ministerial duty under Penal Code section 679.10; the qualifying-crime / probable-cause dispute is factual and cannot be resolved on demurrer) and the fourth cause of action (declaratory relief). It sustains without leave the second and third causes of action.

The minute order has not yet entered. Plaintiff does not ask this Court to treat the attached tentative as a final state-court judgment. Plaintiff files this notice so the Court has the written ruling that was before the parties at the August 28 hearing, and will lodge the minute order when it is in hand.

This Notice does not amend the opposition and contains no further argument. See Civil L.R. 7-3.

Dated: August 31, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per